

# EXCLUSIVE DISTRIBUTION AGREEMENT

Between Kestrel Instruments Limited and Apex Scientific Pte Ltd

## PARTIES

THIS AGREEMENT is made between Kestrel Instruments Limited, a company incorporated in England and Wales (company number 09182773) whose registered office is at 14 Wellington Court, Reading RG1 8DB, United Kingdom (the “Supplier”), and Apex Scientific Pte Ltd (UEN 201409876M), whose registered office is at 3 Science Park Drive, Singapore 118223 (the “Distributor”).

## 1 Definitions and interpretation

In this Agreement, unless the context otherwise requires, the following expressions shall have the following meanings:

“Products” means those goods of the Supplier falling within Product Category X, as that category is more particularly described in Schedule 1 to this Agreement.

“Territory” means the Republic of Singapore.

“Term” has the meaning given in clause 2.1.

### 2.1 Term

This Agreement shall commence on 1 August 2025 and shall continue, subject to earlier termination in accordance with clause 14, for a period of thirty-six (36) months, expiring on 1 August 2028.

### 2.2 Renewal

This Agreement shall not renew automatically. Any extension or renewal of the Term shall be effective only if agreed by the parties in writing and signed by an authorised signatory of each of them.

### 3.1 Appointment

The Supplier hereby appoints the Distributor as its exclusive distributor for the sale of the Products in the Territory, and the Distributor accepts that appointment.

During the Term the Supplier shall not appoint any other person, firm or company as a distributor, agent or reseller of the Products in the Territory, and shall not itself sell or supply the Products to any customer in the Territory otherwise than through the Distributor.

### 3.2 Distributor’s undertakings

The Distributor shall use all reasonable endeavours to promote and increase the sale of the Products in the Territory, shall maintain sufficient stocks to meet anticipated demand, and shall not, without the prior written consent of the Supplier, sell the Products to any person outside the Territory.

### 8.4 Marketing contribution

The Distributor shall pay to the Supplier an annual marketing contribution of S\$25,000 on 1 April in each year of the Term, against which the Supplier shall apply co-operative advertising expenditure in the Territory.

### 13.3 Limitation of liability

Save in respect of liability which cannot lawfully be limited, the aggregate liability of each party to the other under or in connection with this Agreement, whether in contract, tort (including negligence), for breach of statutory duty or otherwise, shall in no event exceed S\$500,000.

### 14.1 Termination for convenience

Either party may terminate this Agreement at any time by giving to the other not less than six (6) months' written notice, such notice to expire at any time.

#### **14.2 Termination for cause**

Either party may terminate this Agreement immediately by written notice where the other party enters into liquidation, has a receiver or administrator appointed over any of its assets, or is otherwise unable to pay its debts as they fall due.

Either party may also terminate this Agreement by written notice where the other party commits a material breach of it and fails to remedy that breach within thirty (30) days of written notice requiring it to do so.

## **SCHEDULE 1 — PRODUCT CATEGORY X**

Product Category X comprises the Supplier's benchtop analytical instruments and their dedicated consumables, namely: the KI-400 series spectrophotometers; the KI-650 series chromatography modules; and calibration standards, sample cells and reagent cartridges supplied for use with either of them.

Product Category X does not include the Supplier's field-portable instruments, which are distributed under separate arrangements.

## **GOVERNING LAW AND JURISDICTION**

This Agreement is governed by the laws of Singapore. The parties submit to the exclusive jurisdiction of the courts of Singapore in respect of any dispute arising out of or in connection with it.